



CHAPTER xcvi.

An Act to empower the London United Tramways Limited to enter into working and other agreements with owners of tramways and railways and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS the London United Tramways Limited (in this Act called "the Company") under and by virtue of the London United Tramways Acts 1873 to 1912 are the owners of a large system of tramways and light railways situate in the counties of Middlesex Surrey and London:

And whereas the tramways and light railways of the Company effect junctions with or are contiguous to tramways or light railways owned or worked by local authorities or other companies and it is expedient that the Company and any such local authority or other company should be authorised to enter into and carry into effect agreements with respect to the mutual working and use of the tramways or light railways of the contracting parties or either of them or any part or parts thereof and that the provisions of this Act with respect thereto should be made:

And whereas it is expedient that the provisions in this Act contained should be made for the interchange of traffic and the issue of through tickets between the tramways and light railways of the Company and the undertakings of railway companies:

And whereas it is expedient that other powers as contained in this Act should be conferred upon the Company:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty

[Ch. xcvi.] *London United Tramways Act, 1914.* [4 & 5 GEO. 5.]

A.D. 1914. — by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1. This Act may be cited for all purposes as the London United Tramways Act 1914 and the London United Tramways Acts 1873 to 1912 and this Act may be cited as the London United Tramways Acts 1873 to 1914.

Interpreta-
tion.

2. In and for the purposes of this Act—

The expression “the Company” means the London United Tramways Limited;

The expression “tramways” includes light railways.

Working
agreements.

3. The Company on the one hand and any local authority company body or person owning or working any tramways contiguous to or which may now or hereafter be connected with any tramways of the Company on the other hand may enter into and carry into effect agreements with respect to the following purposes or any of them (that is to say):—

- (1) The leasing working running over management and maintenance of the tramways of the contracting parties or any part or parts thereof:
- (2) The taking of tolls fares and charges by the working party on the tramways of the owning party:
- (3) The supply by either party to the other of rolling stock and motive power during the continuance and for the purposes of any agreement under subsection (1) of this section but nothing in this section shall authorise any party to an agreement under this section to manufacture rolling stock:
- (4) The payments to be made and the conditions to be performed with respect to the matters aforesaid:
- (5) The management regulation interchange collection transmission and delivery of traffic upon or coming from or destined for the tramways of the contracting parties:
- (6) The fixing collection payment appropriation apportionment and distribution between the contracting parties of the tolls fares charges and revenue levied

taken or arising upon or from the tramways and works of the contracting parties or any part thereof
 Provided that the amount of the tolls fares or charges fixed by any agreement made in pursuance of this section shall not exceed the maximum tolls fares and charges authorised in respect of the tramways with respect to which the agreement is made
 Provided also that for the purpose of calculating the maximum fares rates and charges any tramways worked by or leased to the Company or any other tramway or light railway authority in pursuance of an agreement made under the powers of this section and any other tramways connected therewith and worked by or leased to the Company or such authority shall during the continuance of such agreement be deemed to be one undertaking:

A.D. 1914.

- (7) The issue of through tickets available over all or any parts of the tramways of any of the contracting parties and the fixing of through fares and charges as between the tramways of the contracting parties.

4.—(1) Notwithstanding anything contained in this Act no agreement shall be entered into under the section thereof of which the marginal note is “Working agreements” with reference to any tramways in the borough of Croydon or any tramways authorised by the Croydon and District Electric Tramways Act 1902 or the Croydon and District Electric Tramways (Extensions) Act 1903 or any light railways authorised by the Mitcham Light Railway Order 1901 except with the consent in writing of the mayor aldermen and burgesses of the borough of Croydon (in this section called “the corporation”) under their corporate seal which consent may be given upon and subject to such terms and conditions as may be agreed between the Company and the corporation.

For protection of Croydon Corporation.

(2) Provided that the consent of the corporation under this section shall not be unreasonably withheld and if any question shall arise between the corporation and the Company as to whether such consent is unreasonably withheld or as to the terms and conditions upon and subject to which it should be given that question shall be determined by arbitration under the provisions of the Arbitration Act 1889 and in the determination thereof regard shall be had to the rights and interests of the corporation under the said Acts and Order.

A.D. 1914.
—
Saving for
Postmaster-
General.

5. Nothing in any agreement made under the authority of this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the light railways comprised in the undertaking of the Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the making of any such agreement be at liberty to exercise all the rights aforesaid notwithstanding that the said light railways of the Company or any of them are leased or worked by any one or more of the railway companies mentioned in section 9 of or in the schedule to the Telegraph Act 1868 as freely and fully in all respects as he was entitled to do before the making of any such agreement.

Agreements
as to inter-
change of
traffic with
railways.

6. The Company on the one hand and any company owning or working any railway near to any tramways of the Company on the other hand may enter into and carry into effect agreements for and with respect to the interchange transmission and delivery of passenger or parcel traffic coming from or destined for the tramways of the Company or the railways of any such railway company and the issue of through tickets and the fixing of through fares tolls and charges to be demanded and recovered in respect of such traffic and the division and apportionment of the receipts arising from such traffic.

Power to
use trailer
and coupled
carriages.

7.—(1) Notwithstanding anything to the contrary contained in any Act Order byelaw or regulation relating to the tramways of the Company the Company may with the consent of the Board of Trade provide maintain work and use trailer carriages and coupled carriages on their tramways on such routes and at such times as the Board of Trade may approve and for such periods and on such terms and conditions as may be expressed in such approval and the Board of Trade may revoke any such approval or alter the terms and conditions of any such approval but this section shall not enable the Company to run trailer or coupled carriages in any district in which the Company are prevented from so doing under any Act or any agreement made with the local authority of such district prior to the passing of this Act otherwise than with the consent of such authority :

Provided that before the Board of Trade give any consent under the provisions of this section notice of the application of the Company shall be given to the commissioner of police and to the local authority of any district affected and the Board of Trade shall take into consideration any objections of the commissioner or any such authority : ' A.D. 1914.

Provided also that the Company shall not in exercising the powers in this section contained obstruct or interfere with the free passage of persons or vehicles to or from the entrances to or exits from the stations of any railway company and trailer carriages or coupled carriages shall not without the consent of such railway company be stopped for the distance thereon extending in front of the said entrances or exits and for a length of ten yards at each end of such entrance except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers.

(2) The trailer carriages and coupled carriages used by the Company under the provisions of this section shall be fitted with such brakes and safety appliances as the Board of Trade may approve and no trailer carriage or coupled carriage shall be used by the Company unless the design thereof has been approved by the Board of Trade.

(3) Except so far as the Board of Trade may otherwise allow the number of carriages or vehicles which may be used or run attached together shall not in any case exceed two.

(4) The powers of this section for the running of trailer carriages or coupled carriages shall not be exercised so as to curtail the frequency of the ordinary service of carriages.

8. Notwithstanding anything contained in any Act to the contrary the Company may run and reserve cars on any of their tramways for the conveyance of women or for any other special purpose which the Company may consider necessary or desirable and the Board of Trade may make byelaws and regulations for prohibiting the use of any such cars by any persons other than those for whose conveyance such cars are reserved. Power to reserve cars for special purposes.

The provisions of section ~~4~~⁴¹⁵ of the Tramways Act 1870 shall extend and apply to any byelaws made for the purposes of this section.

9. Notwithstanding anything to the contrary contained in any Act Order byelaw or regulation the Company may during Power to carry additional passengers.

A.D. 1914. inclement weather or on Sundays or Bank or other public holidays throughout the day or on Saturdays after twelve o'clock noon or (with the consent of the commissioner of police of the metropolis) on special occasions carry in any carriage used by them on any tramways an additional number of passengers not exceeding one third of the number of passengers which such carriage is licensed to carry In the case of a two-deck carriage any such additional passengers shall be carried only in the lower saloon and shall not exceed one third of the number which the carriage is licensed to carry in that saloon.

Byelaws as to payment &c. of fares. **10.** The Company may make byelaws with respect to the persons times and places to whom and at and in which the tolls and charges authorised to be taken by the Company shall be paid and the provisions of the Tramways Act 1870 shall apply to any byelaws made under this section Provided that without the consent of the commissioner of police no place shall be provided or used for the taking of tolls and charges in any street or public place.

As to trailer &c. cars in Surbiton. **11.** The provisions of the section of this Act of which the marginal note is "Power to use trailer and coupled carriages" shall not be exercised on the tramways existing or authorised at the passing of this Act in the urban district of Surbiton.

Provision as to general Tramway Acts. **12.** Nothing in this Act contained shall exempt the Company or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised in respect of any of the tramways.

Costs of Act. **13.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE, LTD.,

FREDERICK ATTERBURY, Esq., C.B.,  King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.